

I. Request

1. The Ministry of Foreign Affairs, through the Directorate-General for European Affairs, requested the National Data Protection Commission (CNPD) to express its opinion on the Comprehensive Partnership and Cooperation Framework Agreement between the European Union and its Member States, on one hand, and the Kingdom of Thailand, on the other (hereinafter referred to as the "Agreement").
2. The Agreement under consideration, due to its strategic nature, evident from its designation and also from the list of its principles and objectives, takes on a naturally comprehensive form that covers a partnership between the European Union and the Kingdom of Thailand aimed at "promoting the
3. Under the provisions of Article 2, the parties agree that dialogue and cooperation will encompass matters of mutual interest, both at regional and global levels, serving to clarify interests and positions through the establishment of a common basis for bilateral cooperation initiatives or multilateral actions in the areas defined in the Agreement, or that may be established for specific sectors.
4. The Agreement thus covers various areas, such as: human rights; freedom, security, and justice; combating the proliferation of weapons of mass destruction; fighting various types of serious and organized crime of international and transnational relevance; good fiscal governance; science, technology, and innovation; tourism; education and culture; health; sustainable development.
5. The CNPD issues this opinion within the scope of its powers, as the National Authority for the Control of personal data processing, conferred by paragraph 2 of Article 30, in conjunction with paragraph 1 of Article 43, and with subparagraphs a) and c) of paragraph 1 of Article 44, all of Law No. 59/2019, of August 8.

II. Analysis

6. Although the Agreement largely focuses on promoting common approaches in international forums, on the exchange of experiences, information on legislation, and the sharing of best practices, as well as on the exchange of views, deepening cooperation, and strengthening technical assistance and training, it also provides for forms of cooperation that necessarily involve the processing of personal data.
7. The processing of personal data is manifested, in particular, in the exchange of information on cooperation regarding the prevention and fight against terrorism and transnational crime (cf. Article 2, subparagraph d)), in judicial and legal cooperation in the field of migration, combating money laundering, organized crime, and illicit drugs (cf. Article 2, subparagraph g)), and in the field of preventing and combating the abusive use of its financial systems for money laundering and terrorist financing purposes (cf. Article 28, paragraph 1).
8. The Agreement does not regulate the specific manner in which this cooperation is implemented, and therefore does not contain specific rules regarding the processing of personal data resulting from the exchange of information in the different areas indicated.
9. However, there are rules from which it can be inferred, either implicitly or explicitly, that there will be processing of personal data. This is evident regarding:
 - a. The rules provided in subparagraphs d) and g) of Article 2, in relation to which it is important to note that the cooperation envisaged will likely involve the processing of personal data, particularly the international transfer of data, and in this case, this Agreement does not constitute a legally binding instrument, lacking the adequate guarantees as defined in subparagraph a) of paragraph 1 of Article 39 of Law No. 59/2019, of August 8;
 - b. Regarding the rules enshrined in Article 6, paragraphs 1 and 2, subparagraph b), since it refers to national law, it is important that the obligations imposed by Law No. 59/2019, of August 8, regarding international transfers, are complied with.
10. It should also be noted that the Agreement does not meet the legal requirements of Article 39, paragraph 1, subparagraph a) of Law No. 59/2019, of August 8, and a specific Agreement should be negotiated that provides for adequate guarantees for compliance with the general principles applicable

to the transfer of personal data, as derived from Article 37 of the aforementioned Law, interpreted in light of the jurisprudence of the CJEU (e.g., the Schrems II ruling).

11. Regarding judicial and legal cooperation, as provided in Article 23 of the Agreement, it should be emphasized, concerning the establishment of its paragraph 3, that in the situations there described, in compliance with currently effective cooperation and mutual assistance agreements, data protection norms must be respected, even if this implies a review of those instruments.

12. Although this Agreement appears to have characteristics similar to a framework agreement, the CNPD believes that this is not the appropriate instrument to regulate, when applicable, the processing of personal data resulting from its implementation.